IN THE DISTRICT COURT OF APPEAL

FOR THE FIFTH DISTRICT, STATE OF FLORIDA

JESSICA LIGHT and RAYMOND LIGHT, individually, and on behalf of O.L., a minor,
Petitioners,

v.

ADVENTIST HEALTH SYSTEM / SUNBELT, INC., d/b/a FLORIDA HOSPITAL ALTAMONTE; FLORIDA HOSPITAL MEDICAL GROUP, d/b/a NEONATAL CARE CENTER; FLORIDA HOSPITAL MEDICAL GROUP, d/b/a FLORIDA WOMEN'S CENTER; SHEILA RAMOS-MARTINEZ, MD; and TODD COPELAND, Esq., as Guardian ad Litem to O.L., a minor;
Respondents.
/

ORIGINAL PROCEEDING

CASE NO.: _____
L.T. NO.: 2016-CA-000487-16-K

PETITION FOR WRIT OF CERTIORARI

Petitioners, JESSICA LIGHT and RAYMOND LIGHT, individually, and on behalf of O.L., a minor, by and through the undersigned counsel, and, pursuant to Fla. R. App. P. 9.100, hereby petition this Court for a Writ of Certiorari to review an Order entered by the Honorable Susan Stacy in the Eighteenth Judicial Circuit: "Order on Defendant Sheila Ramos-Martinez,

M.D.'s Motion to Compel Plaintiffs' Answers to Boecher Interrogatories and Boecher Request to Produce" (hereinafter "Order"), rendered September 3, 2024. (A. 285-88)[1]. The Order departs from the essential requirements of law, and specifically Rule 1.280, by improperly compelling Petitioners/ Plaintiffs' counsel to produce its law firm's records regarding expert witnesses that Petitioners intend to have testify in support of their causes of action. The Order causes Petitioners irreparable harm by converting Petitioners' attorneys from Petitioners' counsel to Defendants' witnesses. This Court should grant this Petition for Writ of Certiorari and quash the Order of the lower tribunal.

BASIS FOR INVOKING THE JURISDICTION OF THIS COURT

This Court has Certiorari Jurisdiction to issue a Writ of Certiorari to quash the trial court's order departing from the essential requirements of law, under Fla. R. App. P. 9.030(b)(2)(A), 9.030(b)(3), and 9.100(c), and Article V Section 4(b)(3) of the Florida Constitution. This Petition for Writ of Certiorari is timely as filed within 30 days of the lower tribunal's rendering the Order on September 3, 2024. Fla. R. App. P. 9.100(c).

[1]The Appendix is cited as "A." and the page number.

STATEMENT OF RELEVANT FACTS

This dispute arises in the context of a birth injury case initiated by Petitioners, the Plaintiffs below, Jessica Light and Raymond Light, parents of O.L., a minor, individually and on his behalf, against the medical providers. The following facts are relevant to this Petition:

On August 1, 2023, Petitioners filed their Expert Witness Disclosure. (A. 7-14). These witnesses include retained expert witnesses and treating physicians. (A. 7-12).

On August 22, 2023, Respondent, Sheila Ramos-Martinez, M.D. (hereinafter "Ramos") propounded upon Petitioners a set of Boecher Interrogatories. (A. 18-23). These Boecher Interrogatories specifically requested this information, at ¶ 2:

> State the total amount of money that each of the above listed experts has been paid by your attorney (including the attorney's law firm) during the preceding three (3) years for any services rendered including but not limited to the performance of investigations, compulsory medical examinations, records reviews, report preparation, litigation preparation, attorney conferences, diagnostic testing, deposition testimony and/or trial testimony or any other expert service. Please separate these payments by witness.

(A. 22). On September 1, 2023, Petitioners served their response and objected to answering these interrogatories on the grounds that the interrogatories exceed the maximum permitted number; these questions must be directed to a party, not the law firm; that Plaintiff has no knowledge

of this information; that the discovery is impermissible according to the Florida Rules of Civil Procedure and Rule 1.280(b)(5), Rule 1.350(a) which requires that Requests for Production are only permitted to be served on a party, Rule 1.370(a) which requires that Interrogatories may only be served on a party; and that such a request is improper discovery because these questions must be directed to the expert. (A. 24-28).

On August 22, 2023, Respondent Ramos propounded upon Petitioners a Boecher Request to Produce, seeking the following information:

> Copies of any and all invoices, records, memoranda, checks, check stubs, receipts, 1099's, tax records or any other form of financial information evidencing payment or compensation paid by Plaintiff's attorneys for services provided by Plaintiff's disclosed experts for the last three (3) years.

(A. 15-17). On September 1, 2023, Petitioners served their response and objected to responding to these Requests to Produce for the same reasons as objecting to the Interrogatories. (A. 29-32).

On March 18, 2024, Respondent Florida Hospital Medical Group (hereinafter "FHMG") propounded upon Petitioners' attorneys a similar set of Expert Interrogatories (A. 33-37) and Expert Request to Produce. (A. 38-40). On April 18, 2024, Petitioners served their same objections. (A. 45-49).

On April 15, 2024, following the hearing on March 12, 2024, the lower tribunal issued an order overruling Petitioners' objections and directing Defendants to re-serve their discovery requests on Plaintiffs' counsel. (A. 41-44).

On April 26, 2024, Respondent Ramos propounded upon Petitioners' attorneys the same set of Boecher Interrogatories (A. 62-70), as well as propounding the same Boecher Interrogatories upon Petitioners (A. 56-61). On the same day, Respondent Ramos also propounded the upon Petitioners' attorneys the same Boecher Request to Produce (A. 53-55), as well as propounding the same Boecher Request to Produce upon Petitioners. (A. 50-52). On May 28, 2024, Petitioners and their attorneys again objected to answering these Interrogatories and Request to Produce. (A. 71-81).

On June 8, 2024, Respondent Ramos filed their "Motion to Compel Plaintiffs' Answers to Boecher Interrogatories and Boecher Request to Produce" (A. 82-226) and argued that Petitioners raised objections that were previously overruled. (A. 83). On June 19, 2024, Respondent FHMG filed their similar "Motion to Compel Plaintiffs to Substantively Respond to Interrogatories and Request to Produce Dated 03/18/2024" (A. 227-44), and advanced the same arguments as Respondent Ramos (A. 228-29).

The Court heard the two Motions to Compel on July 10, 2024. (Transcript excerpt at A. 245-84). At this hearing, Petitioners continued to argue that the discovery must be directed to the expert, not Petitioners' attorneys. (A. 258:15-20)[2]. Petitioners also notified the court of their concern that, once their attorneys answer discovery requests, their attorneys become a material witness to the case. (A. 258:20-22; 262:23 – 263:4; 268:23 – 269:4). Petitioners further alerted the court to the exact phrasing of Rule 1.280(b)(5), specifically that expert discovery may be obtained only as prescribed in the rule. (A. 261:8 – 262:16; 263:5-23).

Ultimately, the court granted the Respondents' respective motions to compel, citing *Springer v. West*, 769 So.2d 1068 (Fla. 5th DCA 2000); *Allstate Ins. Co. v. Boecher*, 733 So.2d 993 (Fla. 1999); *Tillman v. Sweat*, 49 Fla. L. Weekly D1287, 2024 WL 2952695 (Fla. 5th DCA June 12, 2024); and the supremacy of text argument of *Petri Positive Pest Control v. CCM Condo. Ass'n*. (A. 245:8-25).

The "Order on Defendant Sheila Ramos-Martinez, M.D.'s Motion to Compel Plaintiff's Answers to Boecher Interrogatories and Boecher Request to Produce" was rendered on September 3, 2024. (A. 285-88).

[2]The transcript of the hearing is cited as "A.", Appendix page number, colon, and line numbers. "A. 258:15-20" refers to Appendix page 258, lines 15-20.

The Order finds that "The financial relationship between expert witnesses and Plaintiffs' law firm is discoverable" (A. 285), states that the court relies on *Petri Positive Pest Control v. CCM Condo. Ass'n*, 271 So.3d 1001 (Fla. 4th DCA 2019), *approved,* 330 So.3d 1 (Fla. 2021) (A. 286), grants both Respondent Ramos's Motion to Compel and Respondent FHMG's Motion to Compel (A. 286), and orders as follows:

> 6. Plaintiffs' counsel Diez-Arguelles & Tejedor, P.A., will identify the cases in which their Experts had performed analyses and rendered opinions for Diez-Arguelles & Tejedor in the preceding three (3) years. Additionally, Diez-Arguelles & Tejedor, will provide the amount and corresponding documents regarding fees paid to their experts in the preceding three (3) years.
>
> 7. Plaintiffs shall have thirty (30) days to provide responses to the requested discovery.
>
> (A. 287).

This Petition for Writ of Certiorari followed.

THE NATURE OF THE RELIEF SOUGHT

Florida Rule of Civil Procedure 1.280(b)(5) governs the exclusive manner in which a party may obtain discovery of financial information concerning another party's expert witnesses. The rules of procedure do not allow interrogatories or requests to produce to be directed to an attorney or law firm. Instead, the rules specifically state that discovery is to be served only on a party. Petitioners' attorneys are not a party to the case below, yet

the lower court's Order compels them personally to answer interrogatories and requests to produce.

The lower court's Order compelling Petitioners' attorneys and law firm to answer discovery requests departs from the essential requirements of the plain text of Rule 1.280(b)(5) that demands that expert witness discovery be served only upon a party. The Order further departs from the essential requirements of Rule 1.280(b)(5)(A)(ii) by failing to acknowledge that any alleged financial bias information is readily available via deposition of Petitioners' disclosed expert witnesses. The Order needlessly causes irreparable harm to Petitioners by converting Petitioners' attorneys from their counsel to central witnesses in Respondents' case, a material injury that cannot be remedied on appeal.

Petitioners respectfully request that this Court grant this Petition for Writ of Certiorari and quash the Order on review.

ARGUMENT

I. The Trial Court's Order Departed from the Essential Requirements of Law in Compelling Petitioners' Counsel, a Non-Party, to Answer Discovery Requests and Serve as a Defense Witness

The plain, obvious, common-sense meaning of Rule 1.280 is that it provides the exclusive means of seeking information about expert witnesses: from a party only, not from their attorneys. The essential

requirements of Rule 1.280 are service of discovery requests on Petitioners, who are a party, not on Petitioners' attorneys who are not a party. The expert witnesses in question are not treating physicians, and Rule 1.280 requires Respondents to seek any permissible financial bias information by deposing Petitioners' disclosed expert witnesses.

This is a new issue that has not been addressed by any court: whether the trial court may compel the plaintiff's attorneys and law firm to answer discovery requests regarding financial information of the plaintiff's retained expert witnesses. Previous cases have addressed discovery requests regarding the financial relationship amongst other combinations of parties, law firms, insurance companies, treating physicians, and expert witnesses. However, none of these cases compels Petitioners' attorneys to answer interrogatories and requests for production regarding a financial relationship between the attorneys and retained witnesses, in contravention of established court precedent and black-letter law.

In *Allstate Ins. Co. v. Boecher*, the Supreme Court of Florida addressed discoverability of the financial connection between an expert and a defendant who was an insurance company. *Allstate Ins. Co. v. Boecher*, 733 So.2d 993 (Fla. 1999). *Boecher* allowed discovery of "facts known directly by Allstate concerning the extent of Allstate's relationship

with its expert witness." *Id.* at 999. Here, Petitioners/Plaintiffs are not an insurer, but rather natural persons.

In *Worley v. Central Fla. YMCA*, the Court addressed the relationship between a plaintiff's treating physician and the law firm, which is not the case here where Petitioners' retained experts are the topic of discovery requests. *Worley v. Central Fla. YMCA*, 228 So.3d 18 (Fla. 2017). The *Worley* Court also held that discovery requests directed to the plaintiff's law firm were improper where there was no further evidence of a referral relationship. *Id.* at 24. Additionally, the Court held that a party can attempt to establish bias of a witness in a variety of other ways, none of which require the plaintiff's law firm to provide their own records. *Id.* at 23-24.

While Respondents relied upon *Younkin v. Blackwelder* to show that it was acceptable to seek discovery regarding experts from a law firm, that case addressed only a defense law firm and its experts, not a plaintiff's firm. *Younkin v. Blackwelder*, 331 So.3d 686 (Fla. 2021). *Younkin* recognized that *Worley* had created an uneven playing field skewed in favor of plaintiffs when it comes to the discovery of financial bias relationships between the parties' experts. *Id.* at 687. *Younkin's* holding was therefore consistent with *Worley's* holding: that the financial relationship between a plaintiff's law firm and its experts are not

discoverable directly from the law firm, but the financial relation between a defendant's law firm and treating physicians is permissible.

In *Dodgen v. Grijalva*, the Court also noted the disparity created by *Worley* between a plaintiff's law firm and its experts, and a defendant's law firm and its experts. *Dodgen v. Grijalva*, 331 So.3d 679 (Fla. 2021). The dissent in *Dodgen* additionally states that, "I would recede from *Worley v. Central Fla. YMCA*, and require disclosures equally from plaintiffs and defendants." *Id.* at 686 (Polston, J., dissenting).

In *Morgan, Colling & Gilbert, P.A., v. Pope*, the Second District Court of Appeal held that discovery directly from a law firm regarding a financial relationship between a law firm and expert witnesses was acceptable because of the nature of the information. *Morgan, Colling & Gilbert, P.A., v. Pope*, 798 So.2d 1, 3 (Fla. 2d DCA 2001). However, the *Morgan* holding is not dispositive because, here, Petitioners are harmed by Respondents' centering their case on Petitioners' attorneys' discovery answers thus leading to a conflict of interest between Petitioners and their counsel, when Respondents can more easily and directly obtain the information by way of deposing the disclosed expert witnesses. *See Syken v. Elkins*, 644 So.2d 539, 547 (Fla. 3d DCA 1994).

Most recently, in *Tillman v. Sweat*, this Court held that financial bias discovery may be obtained from treating physicians, but did not address the issue of whether such information can be obtained by requiring the plaintiff's counsel to produce the information in discovery. *Tillman v. Sweat*, 49 Fla. L. Weekly D1287, 2024 WL 2952695 (Fla. 5th DCA June 12, 2024).

A. The Principle of "Supremacy of Text" Requires the Court to Interpret the Words of the Governing Text in Their Plain, Obvious, Common Sense Meaning

Florida law adheres to the "supremacy of text" principal, meaning that "the words of a governing text are of paramount concern, and what they convey, in their context, is what the text means." *Ham v. Portfolio Recovery Assocs.*, 308 So.3d 942, 946 (Fla. 2020). "This requires a methodical and consistent approach involving 'faithful reliance upon the natural or reasonable meanings of language' and 'choosing always a meaning that the text will sensibly bear by the fair use of language.'" *Id.* at 947, quoting Antonin Scalia & Bryan A. Garner, *Reading Law: The Interpretation of Legal Texts* at 34 (2012).

"[A]ffected individuals and courts alike are entitled to assume statutory terms bear their ordinary meaning." *Niz-Chavez v. Garland*, 593 U.S. 155, 163 (2021). The Supreme Court of Florida follows this guideline and held that "every word employed in [a legal text] is to be expounded in

its plain, obvious, and common sense, unless the context furnishes some ground to control, qualify, or enlarge it." *Advisory Opinion to Governor re Implementation of Amendment 4, The Voting Restoration Amendment*, 288 So.3d 1070, 1078 (Fla. 2020), quoting Joseph Story, *Commentaries on the Constitution of the United States*, 157-58 (1833); *see also Adventist Health Sys./Sunbelt, Inc. v. Machalek*, 383 So.3d 534, 539 (Fla. 5th DCA 2023) (Kilbane, J., concurring specially). Further, there is a "presumption of consistent usage: A word or phrase is presumed to bear the same meaning throughout a text." *Lab. Corp. of Am. v. Davis*, 339 So.3d 318, 324 (Fla. 2022), citing Scalia & Garner, *Reading Law* at 170 (internal quotation marks omitted).

In *Conage v. U.S.*, the Supreme Court of Florida held that, "judges must exhaust all the textual and structural clues that bear on the meaning of a disputed text." *Conage v. U.S.*, 346 So.3d 594, 598 (Fla. 2022). The Court further held that, "the plainness or ambiguity of statutory language is determined by reference to the language itself, the specific context in which that language is used, and the broader context of the statute as a whole." *Id.*

The principle of supremacy of text requires that the "plain meaning of the statute is always the starting point in statutory interpretation." *Alachua*

Cnty. v. Watson, 333 So.3d 162, 169 (Fla. 2022). "Appellate courts first analyze the plain meaning of the language of a statute, finding the legislative intent from the statute's actual text. If the statute's language is clear, the court need not resort to the rules of statutory interpretation or construction. On the other hand, it is a longstanding principle of law that the district courts of appeal must follow the opinions of the supreme court." *Petri Positive Pest Control v. CCM Condo. Ass'n*, 271 So.3d 1001, 1003 (Fla. 4th DCA 2019), *approved,* 330 So.3d 1 (Fla. 2021) (emphasis added).

The opinions of the Supreme Court of Florida that this Court must follow are that, according to *Younkin v. Blackwelder*, 331 So.3d 686 (Fla. 2021), and *Worley v. Central Fla. YMCA*, 228 So.3d 18, 23-24 (Fla. 2017), Respondents must seek information on any alleged financial bias from the expert witnesses themselves, not from Petitioners' counsel and law firm.

Florida Rule of Civil Procedure 1.280 governs discovery. Specifically, Rule 1.280(b)(5)[3] is clear in dictating the means by which to seek expert discovery and what information may be sought from persons disclosed as expert witnesses for trial:

> (5) *Trial Preparation: Experts.* Discovery of facts known and opinions held by experts, otherwise discoverable under the

[3]Rule 1.280(b)(5) was renumbered from 1.280(b)(4) as of *In re Amends. to Fla. Rules of Civil Procedure–Elec. Discovery*, 95 So.3d 76, 79 (Fla. 2012). *Smith* and other cases refer to the previous numbering of the rule.

> provisions of subdivision (b)(1) of this rule and acquired or developed in anticipation of litigation or for trial, may be obtained only as follows: . . .
>
> Fla. R. Civ. P. 1.280(b)(5) (emphasis added).

Rule 1.280(b)(5) "means what it says and says what it means." *Smith v. Eldred*, 96 So.3d 1102, 1104 (Fla. 4th DCA 2012). The plain and ordinary meaning of "may be obtained only as follows" is that expert discovery may be made only by the method stated in Rule 1.280(b)(5), that only the information stated within the rule is discoverable, and that such expert discovery can be directed only to the parties, not their counsel, and that the definition of a "party" does not contemplate inclusion of its counsel.

The Court in *Worley v. Central Fla. YMCA* agreed that, "First, and most obviously, the law firm is not a party to the litigation." *Worley v. Central Fla. YMCA*, 228 So.3d 18, 23 (Fla. 2017). Rule 1.210(a) states the intended definition of a party to a lawsuit:

> Every action may be prosecuted in the name of the real party in interest. . . All persons having an interest in the subject of the action and in obtaining the relief demanded may join as plaintiffs and any person may be made a defendant who has or claims an interest adverse to the plaintiff. Any person may at any time be made a party if that person's presence is necessary or proper to a complete determination of the cause. Persons having a united interest may be joined on the same side as plaintiffs or defendants, and anyone who refuses to join may for such reason be made a defendant.

Under this definition, a law firm representing a plaintiff or defendant is not a party and cannot be a party because it has no interest in the subject of the action. Rule 1.210(a). Petitioners' attorneys and law firm have no standing to prosecute Petitioners' lawsuit in the law firm's name. Rule 1.210(a).

Respondents cannot raise any basis for defeating the presumption of consistent usage of the term "party" such that the term would extend to the attorneys or law firm representing a plaintiff or defendant. See *Lab. Corp.* at 324; *Niz-Chavez* at 163.

B. Rule 1.280 Provides the Exclusive Means for Seeking Discovery Regarding Another Party's Expert Witnesses and Any Associated Financial Information

The Supreme Court of Florida in *Conage* held that, it "would be a mistake to think that our law of statutory interpretation requires interpreters to make a threshold determination of whether a term has a 'plain' or 'clear' meaning in isolation, without considering the statutory context and without the aid of whatever canons might shed light on the interpretive issues in dispute." *Conage v. U.S.*, 346 So.3d 594, 598 (Fla. 2022). Here, the broader context of the Florida Rules of Civil Procedure as a whole, as well as the specific context in which the terms are used, require adherence to the plain text of Rule 1.280: Respondents are limited to serving discovery

only upon a party, not a party's attorneys. See *Conage v. U.S.*, 346 So.3d 594, 598 (Fla. 2022).

Rule 1.280 does not require or allow the attorneys representing Petitioners to answer discovery. The text and the rules are plain and simple: Respondents may serve expert discovery only upon a party to the case, and no one else. Petitioners are a party; Petitioners' attorneys are not. Fla. R. Civ. P. 1.210(a); *Worley v. Central Fla. YMCA*, 228 So.3d 18, 23 (Fla. 2017).

The origin of Rule 1.280 is the Supreme Court of Florida's decision in *Elkins v. Syken*, 672 So.2d 517 (Fla. 1996), which approved and adopted the reasoning of *Syken v. Elkins*, 644 So.2d 539 (Fla. 3d DCA 1994). *Syken* (Third DCA) addressed the problem of "the attempt by litigators to demonstrate the possibility of a medical expert's bias through 'overkill discovery,' to prove a point easily demonstrable by less burdensome and invasive means." *Syken* at 547 (Fla. 3d DCA 1994).

Florida Rule of Civil Procedure 1.280(b)(5) "means what it says and says what it means." *Smith v. Eldred*, 96 So.3d 1102, 1104 (Fla. 4th DCA 2012). Rule 1.280(b)(5) governs the only manner in which to obtain discovery regarding financial information about expert witnesses. Specifically, Rule 1.280(b)(5)(A) provides, in relevant part, that the

discovery of facts known and opinions held by experts, may be obtained only as follows:

> (A)(i) By interrogatories a party may require any other party to identify each person whom the party expects to call as an expert witness at trial and to state the subject matter on which the expert is expected to testify, and to state the substance of the facts and opinions to which the expert is expected to testify and a summary of the grounds for each person.
>
> Rule 1.280(b)(5)(A)(i) (emphasis added).

This rule does not obligate or allow anyone other than the party to answer interrogatories. Because the rule states that the discovery regarding the expert witnesses "may be obtained only as follows," and does not list a party's attorney as one who must or may answer interrogatories, the plain meaning of the rule is that Petitioners' attorneys cannot be compelled to answer expert witness interrogatories under Rule 1.280(b)(5)(A). Because Rule 1.280 means what it says and says what it means, "only" in this context means "no more than," "excluding all others," "in no time, place, or situation except the one specified." 'Only' *Definition & Meaning*, Brittanica.com, https://www.britannica.com/dictionary/only [https://perma.cc/6F7S-LXHU].

Rule 1.280(b)(5)(A)(i) allows a party to obtain information about another party's expert initially only through the vehicle of interrogatories. *Smith v. Eldred*, 96 So.3d 1102, 1104 (Fla. 4th DCA 2012). After these

interrogatories are answered, Rule 1.280(b)(5)(A)(ii) allows these disclosed experts to be deposed. *Id.* And, at the deposition, the following questions can be asked regarding financial information:

> (iii) A party may obtain the following discovery regarding any person disclosed by interrogatories or otherwise as a person expected to be called as an expert witness at trial:
>
> 1. The scope of employment in the pending case and the compensation for such service.
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> 2. The expert's general litigation experience, including the percentage of work performed for plaintiffs and defendants.
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> 3. The identity of other cases, within a reasonable time period, in which the expert has testified by deposition or at trial.
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> 4. An approximation of the portion of the expert's involvement as an expert witness, which may be based on the number of hours, percentage of hours, or percentage of earned income derived from serving as an expert witness; however, the expert shall not be required to disclose his or her earnings as an expert witness or income derived from other services.

Rule 1.280 already provides a "less burdensome and invasive means" for Respondents to elicit financial information about Petitioners' expert witnesses: via deposition of the expert witnesses. *Syken v. Elkins*, 644 So.2d 539, 547 (Fla. 3d DCA 1994). Respondents are welcome to depose Petitioners' expert witnesses and ask them questions about information within the scope of Rule 1.280, an easy solution that does

follow the exclusive procedures of 1.280(b)(5) while not converting Petitioners' counsel to a defense witness.

C. Petitioners' Counsel and Law Firm Are Not Parties to the Case, and, Per Rule 1.280, Respondents May Not Direct Expert Witness Interrogatories to Petitioners' Counsel

The Florida Rules of Civil Procedure do not allow interrogatories and request for production of documents to be served on or directed to an attorney or law firm representing a plaintiff or defendant. Rather, the rules are specific: discovery is to be served on the party. Rule 1.340 is titled "Interrogatories to Parties," and section (a) states: "any party may serve on any other party written interrogatories to be answered (1) by the party to whom the interrogatories are directed." (Emphasis added). Here, Petitioners' counsel, Diez-Arguelles & Tejedor, is not a party to this case, cannot be a party to this case, and is involved in this case solely as the Petitioners' counsel. Rule 1.210(a).

The principle of supremacy of text means that terms within a text are assumed to bear their ordinary meaning. *Niz-Chavez v. Garland*, 593 U.S. 155, 163 (2021). Such ordinary meaning "is determined by reference to the language itself, the specific context in which that language is used, and the broader context of the statute as a whole." *Conage v. U.S.*, 346 So.3d 594, 598 (Fla. 2022), quoting *Robinson v. Shell Oil Co.*, 519 U.S. 337, 341

(1997). The ordinary meaning of “the party” within the Florida Rules of Civil Procedure is contained in the definition within Rule 1.210(a), and this definition does not include anyone’s counsel.

Respondents’ interrogatories, improperly directed to Petitioners’ counsel, seek information from Petitioners’ counsel about Petitioners’ retained expert witnesses, not treating physicians. In *Worley v. Central Florida YMCA*, the Court addressed the issue of a party’s treating physician and the law firm. *Worley v. Central Fla. YMCA*, 228 So.3d 18 (Fla. 2017). There, the Court recognized that, “the relationship between a law firm and a plaintiff’s treating physician is not analogous to the relationship between a party and its retained expert.” *Worley* at 23. Yet, regardless of which type of expert, whether a treating physician, a retained expert, or a hybrid expert, Respondents must still seek this alleged financial bias information from the expert directly, not from Petitioners’ counsel. *Id.* at 23-24.

In *Price v. Hannahs*, the Court quashed an order compelling discovery of requested documents because the request “exceeded the permissible scope of discovery as set forth in the rule.” *Price v. Hannahs*, 954 So.2d 97, 100-01 (Fla. 2d DCA 2007). In *Miller v. Harris*, the Court held that Rule 1.280(b)(5) “has been designed to permit discovery about expert witnesses by interrogatories directed to a party.” *Miller v. Harris*, 2 So.3d

1070, 1072 (Fla. 2d DCA 2009) (emphasis added). Even *Allstate Ins. Co. v. Boecher* contemplates only a party answering interrogatories: Rule 1.280(b)(5) "reveals an intent to restrict the information that can be discovered from the expert, even though the discovery is answered by the party." *Allstate Ins. Co. v. Boecher*, 733 So.2d 993, 998-99 (Fla. 1999) (emphasis added).

Courts prefer when a party employs "a less burdensome and invasive means" for seeking information. *Syken v. Elkins*, 644 So.2d 539, 547 (Fla. 3d DCA 1994), *opinion approved of*, *Elkins v. Syken*, 672 So.2d 517 (Fla. 1996). In *Syken*, the Court expressed its disappointment that, where "the information necessary to demonstrate the basis for a claim of bias is most likely readily available through oral or written deposition," this "least burdensome route of discovery. . . was simply not followed." *Id.* at 545. In *Worley*, the Court disagreed with the lower courts' allowing respondents to seek discovery in an improper way "out of perceived necessity." *Worley* at 24.

Similarly, here, Respondents have available the same less-burdensome and invasive means of obtaining information as the parties in *Syken*: deposition of Petitioners' disclosed expert witnesses. Rule 1.280(b)(5)(A)(ii). Similar to *Worley*, Respondents seek discovery in an

impermissible way, but the perceived necessity does not bear out when Respondents have not just the option, but the obligation, to depose Petitioners' expert witnesses. *Id.*

II. The Order Compelling Testimony from Petitioners' Counsel Constitutes Irreparable Harm to Petitioners by Creating a Conflict Where Petitioners' Counsel's Testimony Becomes Evidence for Respondents' Case

Interrogatories directed to Petitioners' counsel necessarily requires Petitioners' counsel to sign the answers to the interrogatories and be subject to cross-examination on their answers. Once Petitioners' counsel answers the interrogatories—as the Order compels them—Petitioners' attorneys themselves become witnesses and a central figure in Respondents' case, to the prejudice of Petitioners. Where Petitioners' counsel becomes a central witness against their interest, a conflict of interest arises such that Petitioners face disqualification of their counsel. The deprivation of Petitioners' counsel is a material injury for the remainder of the case, which cannot be corrected on appeal. *Emed Urgent & Primary Care, P.A. v. Rivas*, 335 So.3d 766, 767 (Fla. 1st DCA 2022).

The Court in *Bellezza v. Menendez* recognized the problem in compelling the testimony of the petitioner's counsel and law firm, with the unacceptable result that the attorney's testimony "became the central focus of the defendants' case." *Bellezza v. Menendez*, 273 So.3d 11, 16 (Fla. 4th

DCA 2019). In *Bellezza*, the defendants raised the "central theme" of plaintiff's attorneys' financial relationship with the treating physicians "in opening statements, throughout testimony, and in closing argument." *Id.*

Compelling Petitioners' attorneys to answer interrogatories regarding expert witnesses will lead to a conflict of interest such that Petitioners' attorneys may be disqualified from representing their clients. "[W]hen it is shown that the attorney will be an indispensable witness or when the attorney becomes a 'central figure' in the case, disqualification is appropriate." *Fleitman v. McPherson*, 691 So.2d 37, 38 (Fla. 1st DCA 1997). Additionally, *Fleitman* held that the individual attorney could be disqualified only for the purpose of trial, but that the attorney's law firm was not disqualified. *Id.* This is not an option here—where Petitioners' individual attorneys are members of a very small law firm.

Such a conflict exists regardless of which attorneys Petitioners choose as their counsel. The Order causes the same irreparable harm by compelling the attorneys for Petitioners to testify via interrogatories, because any information gathered from the answers will be used by Respondents to argue financial bias of Petitioners' expert witnesses as a central theme of their case.

Forcing Petitioners' attorneys to serve as a witness regarding law firm records is improper and absolutely unnecessary. Rule 1.280(b)(5)(A) provides Respondent a means to seek information on any alleged financial bias directly from the expert witnesses under oath at a deposition, to the extent that such information and records even exist.

Considering the irreparable harm that Petitioners face due to conflict and disqualification of Petitioners' counsel, and considering that Respondents can access this same information via deposition of Petitioners' expert witnesses, that they seek in their interrogatories to Petitioners' counsel, this Court should quash the Order compelling Petitioners' counsel to answer interrogatories and requests to produce.

CONCLUSION

Petitioners respectfully request that this Court grant this Petition and issue a Writ of Certiorari quashing the "Order on Defendant Sheila Ramos-Martinez, M.D.'s Motion to Compel Plaintiffs' Answers to Boecher Interrogatories and Boecher Request to Produce" rendered September 3, 2024, which compelled Petitioners' counsel to answer discovery requests improperly directed to Petitioners' counsel, in contravention of the essential requirements of Rule 1.280 and Supreme Court of Florida precedent.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing document has been furnished on October 2, 2024, as follows:

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Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this computer-generated document complies with the applicable font requirements of Rule 9.045(b) by production in Arial font, size 14-point, and that it complies with the applicable word count limit and contains 5,218 words.

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